

25STCV37836 25STCV37836

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-06-25

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Case Number: 25STCV37836 Hearing Date: June 25, 2026 Dept: 534

Background

On December 26, 2025, Plaintiffs Arthur

Young, individually and as Successor-In-Interest to Leontyne Young (Deceased), Tiffany Piper, and Tyesha McKeever filed this action against Silverado Senior Living Management, Silverado Beverly Place, LLC, and Taylor L. Giunto arising out of the death of Leontyne Young. The First Amended Complaint removed Silverado Beverly Place, LLC and Taylor L. Giunto as defendants and added Silverado Sierra Vista, LLC, Silverado Master Tenant LLC, and Vida Gwinn. The First Amended Complaint asserts causes of action for: (1) elder abuse by neglect; (2) negligence; (3) financial elder abuse; and (4) wrongful death.

Motion

On May 22, 2026, Defendants filed the instant motion seeking to transfer this action from the Stanley Mosk Courthouse to the Pomona Courthouse South.

The motion is unopposed. (Code Civ. Proc. § 1005.)

Motion

to Transfer Between Districts

Standard

The

Local Rules of the Superior Court of Los Angeles County govern the assignment

of cases between its districts and departments. (Code Civ. Proc. § 402.) SCLAC Local Rule 2.3(b)(2) authorizes the Supervising Judge of the Civil Division to transfer civil cases from one judicial district to another via a noticed motion on three enumerated grounds: (1) when the case was filed in an improper district; (2) for the convenience of witnesses; or (3) to promote the ends of justice. (SCLAC Local Rule 2.3(b)(2).)

The

Case was Filed in an Incorrect District

Defendants

seek to transfer this action from the Stanley Mosk Courthouse to the Pomona Courthouse South in the East Judicial District of the Superior Court of Los Angeles County. Defendants contend the case was not filed in the correct district based upon the applicable Local Rules and a transfer is warranted based upon the convenience of witnesses and the ends of justice.

In

Column B of the civil case cover sheet addendum, Plaintiffs identified the case as one for "Other Personal Injury/Property Damage/Wrongful Death." In "Step 4" of the civil case cover sheet addendum where the filing party is asked to "[c]heck the appropriate boxes for the numbers shown under Column C for the type of action that you have selected. Enter the address, which is the basis for the filing location including zip code," Plaintiffs selected Reason 4, which corresponds to "Location where bodily injury, death or damage occurred" and listed the relevant address as 330 N. Haworth Ave. Los Angeles, CA 90048. The initial complaint alleged decedent suffered injuries while admitted at a facility at this address. (Compl. ¶ 42.)

However,

on February 26, 2026, Plaintiffs filed the First Amended Complaint, amending the location of the relevant care facility to 125 Sierra Madre Ave, Azusa, CA 91702. (FAC ¶¶ 6, 42.)

"Every unlimited civil tort action for

bodily injury, wrongful death, or damage to personal property (hereinafter referred to as 'Personal Injury Action') must be filed in the judicial district where the incident arose. The filing court locator on the Los Angeles Superior Court website (www.lacourt.org) should be used to determine the appropriate

filing location. . . . A 'Personal Injury Action' is an unlimited civil case described on the Civil Case Cover Sheet Addendum and Statement of Location (LACIV 109) as . . . Other Personal Injury/Property Damage/Wrongful Death." (SCLAC Local Rules, rule 2.3(A)(1)(A).) Plaintiffs' case is a Personal Injury Action and subject to the mandatory filing rules.

The filing court locator yields a single result for cases arising within the community of Azusa with a 91702 zip code and requires personal injury actions to be filed in the Pomona Courthouse South in the East District.

Accordingly, based upon the allegations clarified in the First Amended Complaint, the case was filed in an incorrect district and the motion is GRANTED.

Conclusion

Defendants' Unopposed Motion to Transfer to East District Pomona Courthouse is GRANTED.

All hearings currently set in 25STCV37836 are hereby advanced and vacated.

Notice of case assignment shall be issued shortly.

Counsel for Defendants to give notice.